

LIMITED SOURCES JUSTIFICATION

ORDER >SAT

FAR PART 8.405-6

JOFOC LOG Number: FY25-RPOW Activations-920

Acquisition Plan Action ID:36C24W-25-AP-0066

(1) Contracting Activity: Department of Veterans Affairs Regional Procurement Office
(RPOW) 3237 Peacekeeper Way Building 200 suite 204 McClellan, Park CA 95652

PR IFCAP# 623-25-2-2455-0056

(2) Description of Action: The TRU-D UV-C iQ System is a portable UV disinfection system using dose measuring that provides UV-C and requires only a single placement. TRU-D has been the only company to willing to trade-in the current UV devices the facility has toward credit for their devices. This lowers cost of the devices and removes equipment from the EIL that is beyond economical repair. This UV device has the capability to convert to a smaller more robust device allowing for use in smaller areas or use at nearby CBOC's. The Medical Center would incur additional cost for support services, as a new system would require a new service contract, TRU-D being the only willing to provide support service contracts for the entire lifecycle of the device.

From an operational perspective this dose measured device only uses UV-C, this is what is required to kill any pathogens that does not require sterilization to be killed. This device allows a user to place the device in a room/area and continue to perform other task, such as bed turnover or waste removal in another room. This feature keeps the user from having to move it multiple times. TRU-D operates only in short-wave UV-C with a peak at 253.7 nm (UV-C) for disinfection purpose-monitor screens, and polymer surfaces.

Order against: ☒ FSS Contract Number: 36F7971D0097

Name of Proposed Contractor: L1 Enterprise
Street Address: 618 W. Patrick St.
City, State, Zip: Frederick, MD 21701
Phone: (301)-698-5798

(3) Description of Supplies or Services: Six TRU-D UV-C iQ System is a portable UV disinfection system.

This requirement is for six TRU- Smart iQ Devices at a cost of [REDACTED] each. The total estimated value of the proposed action is \$ [REDACTED]

(4) Identify the Authority and Supporting Rationale (see below and if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

☐ [FAR 8.405-6\(a\)\(1\)\(A\)](#): An urgent and compelling need exists and following the ordering procedures would result in unacceptable delays:

☐ [FAR 8.405-6\(a\)\(1\)\(B\)](#): Only one source can provide the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized;

☐ [FAR 8.405-6\(a\)\(1\)\(C\)](#): In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order must not have been previously issued under sole source or limited source procedures.

☒ [FAR 8.405-6\(b\)](#):
Unique to one manufacturer: The TruD device robot is the only portable UV disinfection system that does not require moving the device or sensors. The systems are manufactured in America and satisfy all standards, L1 Enterprises has an active NAC/FSS contract.

☐ A patent, copyright, or proprietary data limits competition. The proprietary data is:

☐ These are "direct replacements" parts/components for existing equipment.

☐ The material/service must be compatible in all aspects (form, fit and function) with existing systems presently installed/performing.

(5) Describe Why You Believe the Order Represents the Best Value consistent with FAR 8.404(d) to aid the contracting officer in making this best value determination: Prices, Supplies offered on the schedule are listed and fix price for performance of specific task (e.g. installation, maintenance, and repair) GSA has already determined the prices fair and reasonable. By placing an order against a schedule contract using the procedures in 8.405, the ordering activity has concluded that the order represents the best value and results in lowest overall cost alternative to meet the government needs.

(6) Describe the Market Research Conducted: Techniques Used in Conducting Market Research: Market research was conducted using FAR part 10; Using the NAICS Code 339113 and keyword "Tru-D SmartUVC System Disinfection Device". A search was conducted using SBA DSBS Vet Cert, GSA Advantage, FPDS, SBA DSBS, SAMS, and the National Acquisition Center (NAC). In addition, Analytics, Data, and Decision Support Unified Platform (ADDS UP) was used, and the results followed.

RFI# RFQ1742531, was placed on GSA Advantage from 5-10 February, and one vendor responded that vendor was L1 Enterprise, which is also what the NAC uses for their contract (SDVOSB). A Search was also done on FPDS using the keyword Tru-D SmartUVC System Disinfection Device, and four procurements were populated. SBA DSBS was also conducted using the keyword UVA Sterilizes and NAICS code 339113, and zero results were populated. The National Acquisition (NAC) was searched using the keyword Tru-D Smart UVC Disinfection robots, and they do have a contract NAC/FSS 36F7971D0097 that meets all the mission partners' requirements.

According to Tru-D SmartUVC, L1 Enterprises is the only authorized distributor to resell Tru-D products and services to the U.S. Government. See P03 in file. See FAR part 19.1406 sole source award.

(7) Any Other Facts Supporting the Justification: The requirement is manufactured in America, is (TAA) complaint and the vendor has NAC/FSS contract. The vendor has also already been vetted to ensure the government is receiving a fair a reasonable price.

(8) A Statement of the Actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made: N/A

(9) Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge. I understand that processing of this limited sources justification restricts consideration of Federal Supply Schedule contractors to fewer than the number required by FAR Subpart 8.4.

Requestor:

Josiah Morris
Technical POC Engineer

(10) Approvals in accordance with the VHAPM Part 806.3 OFOC SOP:

a. Contracting Officer's Certification (required): I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Prepared By:

Mika Gant
Contracting Specialist

For :

Robert M. Clark Jr.
Contracting Officer

b. One Level Above the Contracting Officer (Required over the SAT but not exceeding \$750K): I certify the justification meets requirements for other than full and open competition

Jeffery Crysler
Branch Chief Aviation Branch 1